

EMPLOYMENT SEPARATION AGREEMENT AND RELEASE

NOTICE: BECAUSE EXECUTION OF THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE WILL AFFECT YOUR LEGAL RIGHTS, YOU SHOULD THOROUGHLY REVIEW AND UNDERSTAND THE TERMS, CONDITIONS AND EFFECT OF THIS AGREEMENT. YOU HAVE THE RIGHT TO CONSIDER THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE FOR TWENTY-ONE (21) CALENDAR DAYS AND TO CONSULT WITH AN ATTORNEY BEFORE YOU SIGN IT. HOWEVER, YOU MAY SIGN THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE PRIOR TO THE END OF THAT PERIOD. IF YOU DO NOT SIGN THE EMPLOYMENT SEPARATION AGREEMENT AND RELEASE WITHIN THE TWENTY-ONE (21) CALENDAR DAY TIMEFRAME, THE OFFER FROM THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HTS CITY SCHOOL DISTRICT, *I.E.*, THE PROPOSED TERMS AS SET FORTH BELOW, SHALL EXPIRE. UPON SIGNING THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE, YOU WILL BE BOUND LEGALLY TO THE TERMS SET FORTH BELOW. FINALLY, YOU HAVE SEVEN (7) DAYS AFTER SIGNING THE EMPLOYMENT SEPARATION AGREEMENT AND RELEASE TO REVOKE IT, IN WHICH CASE IT WILL NOT BE BINDING UPON YOU OR THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT.

This Employment Separation Agreement and Release (the "Agreement") is entered into this ___ day of June, 2021, by and between Terry Alai ("Ms. Alai"), the Brecksville-Broadview Heights Education Association (the "Association"), an affiliate of the National Education Association and the Ohio Education Association, by and through its President Bonnie Monteleone and its duly-authorized labor representative Tad Colbeck, as well as the Board of Education of the Brecksville-Broadview Heights City School District (the "Board"), by and through its Board President Fred Pedersen, Superintendent Joelle Maygar, and Treasurer Craig Yaniglos (collectively hereinafter referred to as the "Parties").

WHEREAS, Ms. Alai, the Association, and the Board, in furtherance of their respective interests, have determined to sever the existing employment relationship between Ms. Alai and the Board;

WHEREAS, Ms. Alai has opted to retire from her current contract with the Board as teacher, along with any and all other contracts she holds with the Board, including supplemental contracts with the Board, effective as of May 31, 2022;

WHEREAS, the Parties recognize that the conclusion of any employment relationship may give rise to dispute, and they therefore wish to amicably resolve any and all issues that may otherwise exist between them and have determined that a release of claims is necessary to effectuate this goal.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, Ms. Alai, the Association, and the Board agree as follows:

1. In consideration of Ms. Alai's acceptance of this Agreement, Ms. Alai shall retire from any and all contracts with the Board, including but not limited to any

continuing, administrative or supplemental contracts, which shall be deemed effective as of May 31, 2022. Pursuant to this Agreement and concurrent with its execution, Ms. Alai shall submit a binding and irrevocable letter indicating her intent to retire, which is **Exhibit A** attached hereto and incorporated herein by reference, indicating an effective date of May 31, 2022, (the "Separation Date"). Ms. Alai shall immediately tender her binding and irrevocable resignation for purposes of retirement to the Superintendent, who shall accept it upon receipt. In consideration for the mutual commitments herein, the Board shall receive and vote upon the acceptance of Ms. Alai's resignation, which shall be deemed effective as of May 31, 2022, though the Board will vote upon the acceptance of the Agreement before its effective date. The Parties agree that pursuant to this resignation, Ms. Alai expressly waives any and all rights, whether under Board policy, contract or Ohio law, including any continuing contract rights, to any position of employment with the Board including any teaching, administrative or supplemental position subsequent to May 31, 2022.

2. The Board agrees that Ms. Alai will remain in paid status through May 31, 2022, consistent with the terms of said current contract and pursuant to standard payroll practices. During this time period, Ms. Alai agrees that:

- she will be assigned to work remotely during the entirety of the 2021-2022 school year;
- she will be responsible to act as case manager for all K-12 IEP students attending out-of-district placements; i.e., will write all IEPs, organize and attend meetings, ensure completion, review, and maintenance of necessary documents, etc.;
- she will participate in training regarding IEP writing;
- she waives her entitlement to IEP writing days;
- she waives all rights to grieve class size and/or case load issues for the duration of her employment;
- she will receive the amount of her previous PLC stipend, which shall be processed through standard payroll practices as all supplemental contracts are processed in the district. Compensation for PLC duties and for purposes of compensating travel and other miscellaneous expenses (e.g. tolls, parking) associated with attending out-of-district meetings;
- she may be subject to discipline up to and including termination for failure adequately perform the duties of her assignment while working, for violation of Board Policy, misconduct, or other good and just cause.

3. The Board shall maintain Ms. Alai's existing level of benefits through May 31, 2022. Ms. Alai shall then be entitled to continuation of coverage under the District's health/medical insurance plan pursuant to any rights she may have under the federal Consolidation Omnibus Budget Reconciliation Act, as amended ("COBRA"), part VI of Subtitle B of Title I of the Employee Retirement Income Security Act of 1974 ("ERISA"), as amended, Internal Revenue Code § 4980(B)(f). Such continuation shall be afforded up to the maximum period provided by law, so long as Ms. Alai

submits timely payments for elected coverage and otherwise complies with conditions of continuation on a timely basis.

4. The Parties agree that Ms. Alai shall notify the State Teachers' Retirement System ("STRS") of her retirement by March 31, 2022, and that she may be eligible for benefits through STRS following her May 31, 2022 retirement.
5. The Parties agree that Ms. Alai shall continue to accrue sick and personal leave during the 2021-2022 school year and shall be able to convert unused days to sick leave for severance purposes as per the negotiated agreement between the parties upon her May 31, 2022 retirement. Said severance shall be based upon the number of Ms. Alai's final accrued days at the end of the 2021-2022 school year.
6. Other than what is expressly provided for in this Agreement, Ms. Alai shall not be entitled to any other severance, compensation, payment, or fringe benefit of any sort whatsoever upon her retirement, regardless of any contract, policy, provision of the Ohio Revised Code, and/or other rules and regulations. Further, Ms. Alai expressly waives any claim of entitlement to same.
7. Ms. Alai agrees not to seek any future employment in the District or any other position that may cause Ms. Alai to perform services of any nature for or in connection with the District.
8. In consideration of the mutual promises set forth in this Agreement, Ms. Alai, on her own behalf and on behalf of her executors, heirs, administrators, agents, successors, assigns and personal representatives, does agree to **release, hold harmless, and forever discharge**, to the fullest extent permitted by law, the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities from any and all causes of action, claims, suits, actions, complaints, demands, damages, expenses (including attorneys' fees and costs actually incurred), and liabilities of any kind, nature or description, whether direct or indirect, in law or in equity, whether now known or unknown, and from continuing effects therefrom, including any and all claims that Ms. Alai now has or may have as of the date of execution of this Agreement, arising or growing out of, resulting from, or in any way related to the employment of Ms. Alai by the Board and Ms. Alai's separation from service. This release includes, without limitation, any and all claims arising under any federal, state, local or common law, including but not limited to any claim in tort, contract or equity, regardless of its nature, breach of contract, invasion of privacy, retaliation, or any claim arising under any equal employment or civil rights law, including but not limited to Title VII of the Civil Rights Act, the Equal Pay Act, the Family and Medical Leave Act, the Americans with Disabilities Act, the Americans with Disabilities Amendment Act, and the Age Discrimination in Employment Act ("ADEA"), as amended by the Older Workers Benefit Protection Act ("OWBPA").

This release also includes any other claim based on constitutional, statutory, common law or regulatory grounds, which Ms. Alai, her executors, heirs, administrators, agents, successors, assigns and personal representatives may now have and may now or

hereafter assert against the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities, arising or growing out of, resulting from, or in any way related to Ms. Alai's employment with the Board and the severance of the employment relationship, whether such claims are now known or unknown. This release further includes any other right to recover monetary relief or any other personal relief through any administrative charge or other claim (this waiver shall not affect any right to file such charge). Ms. Alai expressly waives her right to file a grievance under the negotiated agreement for the duration of the 2021-2022 school year, and acknowledges that any alleged breach of this Agreement must be raised in a court of competent jurisdiction.

It is the intention of the Parties that the foregoing release be construed as broadly as possible under the law; however, it does not include claims that cannot be waived under the law. This Agreement does not affect Ms. Alai's right to file a charge or otherwise participate in an Equal Employment Opportunity Commission ("EEOC") or Ohio Civil Rights Commission ("OCRC") proceeding insofar as it is required by current EEOC/OCRC regulations, provided, however, that Ms. Alai is not entitled to any monetary damages in connection with such proceeding(s). Ms. Alai understands that the Board will assert this Agreement as a full affirmative defense against any claim asserted by her in any forum. Ms. Alai also acknowledges and agrees that in the event she breaches any of the terms of this Agreement, she will pay any expenses or damages incurred as a result of said breach, including all costs incurred by the Board, its officers, members, employees, agents, successors, assigns, and representatives, including reasonable attorneys' fees, in defending against any of the claims released in this Agreement.

9. Ms. Alai and the Association expressly agree to withdraw any pending or threatened grievances. In addition, Ms. Alai, as well as the Association on behalf of Ms. Alai, hereby agree not to challenge her separation from employment or file any grievance against the Board, its officers, members, employees, agents and/or representatives with respect to any matter arising from or in any way related to Ms. Alai's employment, discipline, or separation of employment with the Board, based on facts or events that occurred prior to execution of this Agreement and from continuing effects thereof. Ms. Alai further agrees to waive any and all rights bestowed upon her by virtue of the Parties' collective bargaining agreement or Chapter 33 of the Ohio Revised Code, including but not limited to any seniority, displacement rights, recall rights, or rights to grieve any subject matter contained in this Agreement. Finally, Ms. Alai and the Association agree that Ms. Alai's current position can be posted and filled immediately.
10. Ms. Alai and her heirs, executors, successors, assigns, representatives, and attorneys shall hold the fact and terms of this Agreement in strict confidence and shall not communicate, reveal, or disclose the fact and terms of this Agreement to any other persons except to Ms. Alai's immediate family, to legal counsel, and to tax consultants, all of whom shall be instructed by Ms. Alai similarly to hold the fact and terms of this Agreement in the strictest confidence, and as otherwise required by law. Ms. Alai further agrees not to request or to direct or cause any other individual to

request this Agreement pursuant to Chapter 149 of the Ohio Revised Code. Further, this Agreement as well as any disciplinary and/or termination documents related to Ms. Alai in the possession of the District shall be maintained by the District in a separate and different file from Ms. Alai's personnel file.

11. The Parties agree to refrain from defaming the other Party, its officers, members, employees, agents, representatives, and facilities in any way, including, but not limited to: in person; through handwritten or typewritten correspondence, notes or other documents; through telecommunications; through e-mail communications; and through the use of social media, including, but not limited to, Facebook, Twitter, or any other online message board or social media platform. This Paragraph shall not be construed to extend to Association business and the advocacy for association members through May 31, 2022.
12. Ms. Alai agrees to return to the Superintendent any and all Board property of any kind she has in her personal possession, including but not limited to any education records of students who have attended or do attend school in the District (whether in electronic or paper form). The Superintendent shall schedule a date, time, and location by and on which Ms. Alai must return any and all Board property, such as her District-issued laptop, in her personnel possession to the District, which shall be not later than June 15, 2022.
13. Ms. Alai understands and acknowledges that she is receiving monies or other consideration that she may not otherwise be entitled to receive by entering into this Agreement, as set forth above, and agrees to the terms set forth knowingly and voluntarily.
14. Nothing contained herein shall constitute an admission of fault of any kind by any of the Parties. This Agreement has been made solely for the purpose of resolving any and all possible disputes regarding the severance of the employment relationship between Ms. Alai, the Association, and the Board.
15. Ms. Alai acknowledges and agrees the Board has made no representation whatsoever as to any credits or benefits under the State Teachers Retirement System ("STRS") of Ohio or eligibility for the same. Ms. Alai acknowledges and agrees that she will consult and rely solely upon her own independent advisors, consultants and attorneys in regard to her eligibility and benefits, if any, under the STRS system.
16. The Parties to this Agreement further acknowledge and agree (a) each has had full and complete opportunity to review and examine the terms of this Agreement and to consult with persons of their choice, including legal counsel, prior to execution of this Agreement; (b) each has knowingly and voluntarily executed this Agreement and fully understands the rights, duties and responsibilities imposed by the Agreement and intends to be bound by the terms of the Agreement; and (c) there are no other terms, conditions or agreements relating to the subject matters herein set forth aside from the provisions contained in this Agreement. Ms. Alai acknowledges and agrees

that she is responsible for any costs and fees resulting from her attorney reviewing this Agreement.

17. **Ms. Alai acknowledges and agrees the Board has permitted her at least twenty-one (21) days to consider the execution of this Agreement to ensure that Ms. Alai's execution of this Agreement is knowing and voluntary. In signing below, Ms. Alai expressly acknowledges that she has had at least twenty-one (21) days to consider this Agreement and her execution of the same is with full knowledge of the consequences thereof and is of her own free will. Notwithstanding the fact that the Board has allowed Ms. Alai twenty-one (21) days to consider this Agreement, should Ms. Alai execute this Agreement before the full twenty-one (21) day period has run, Ms. Alai certifies by her signature below that she has knowingly and voluntarily waived the right to the full twenty-one (21) days with no pressure by or coercion from the Board to do so and was not induced by fraud, misrepresentation, or any threat to withdraw or alter the benefits provided by the Board herein. The Parties further agree that any modification to this Agreement, whether material or immaterial, does not restart the running of the twenty-one (21) day consideration period. In signing below, Ms. Alai expressly acknowledges that her execution of this Agreement is with full knowledge of the consequences thereof and is of her own free will.**
18. **Both the Board and Ms. Alai recognize and agree that, for a period of seven (7) calendar days following Ms. Alai's execution of this Agreement, Ms. Alai may revoke her release of claims under the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621, *et seq.*, as amended, by delivering written notice of the same to Treasurer, Craig Yaniglos. If Ms. Alai opts to revoke her consent, no provision of this Agreement shall be legally binding, and the Agreement shall be declared never to have existed.**
19. The Parties agree that the invalidity or unenforceability of any provision or part of this Agreement shall not render any other provision(s) or part(s) hereof invalid or unenforceable and that such other provision(s) or part(s) shall remain in full force and effect.
20. This Agreement shall be governed under the laws of the State of Ohio. The Parties understand and agree that any dispute arising from, growing out of, or in any way relating to this Agreement shall be filed in the state or federal courts of Ohio. In addition, the Parties reserve the right to bring legal action to enforce the terms of this Agreement.
21. This Agreement shall not set any precedent in any future situation that may arise between the Board and the Association, nor shall it be referred to or cited in any fashion in any other dispute or disagreement between the Board and Association, except to the extent the dispute or disagreement relates solely to the enforcement of the terms of this Agreement.

22. This Agreement together with any amendments hereto shall be binding upon and shall inure to the benefit of the Parties hereto and respective successors, assigns, heirs, and personal representatives, except that the rights and benefits of Ms. Alai under this Agreement are personal in nature and may not be assigned without prior consent of the Board.
23. The Parties commit and agree that this Agreement represents the entire understanding and agreement among the Parties, and there are no understandings or agreements between the Parties other than those specifically and particularly set forth in this Agreement. The terms of this Agreement are intended to be enforced as here written to the maximum extent permitted by law, and, if any provision herein is deemed invalid or unenforceable, the remaining provisions shall continue in full force and effect and constitute the Agreement.
24. This Agreement shall not be amended or modified in any manner except upon written agreement signed by the Parties.
25. This Agreement may be signed in counterpart originals and may be delivered by facsimile or email (in "pdf" form).

In witness whereof, and intending to be legally bound hereby, the following individuals have affixed their signatures hereto:

FOR MS. ALAI:

Date: 6/23/2021


Terry Alai

FOR THE ASSOCIATION:

Date: _____

Bonnie Monteleone
President, Brecksville-Broadview Heights
Education Association

Date: _____

Tad Colbeck,
Labor Representative, Brecksville-Broadview
Heights Education Association

FOR THE BOARD:

Date: _____

Fred Pedersen
Board President
Brecksville-Broadview Heights City School
District

Date: _____

Joelle Maygar
Superintendent
Brecksville-Broadview Heights City School
District

Date: _____

Craig Yaniglos
Treasurer
Brecksville-Broadview Heights City School
District

EXHIBIT A

[Insert Date]

To: Brecksville-Broadview Heights City School District Board of Education
From: Terry Alai

Please accept this notice of my intention to retire from my position as a teacher, and from any and all contracts, including supplemental contracts, with the Brecksville-Broadview Heights City School District Board of Education effective at the close of business May 31, 2022. I have enjoyed working with the Brecksville-Broadview Heights City School District students, staff, and community.

Sincerely,

Terry Alai